IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 3

CA(CAA) No. 45/Chd/Hry/2024
(1st Motion)

IN THE MATTER OF:

Talwar Impex Pvt Ltd …Transferor Company

And

Allied Intertrade Company Ltd ….Transferee Company

Under Section: 230-232, Sec 234, CA 2013

Order delivered on 03.01.2025

CORAM:

SH. UMESH KUMAR SHUKLA
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:

For the Applicant : Mr. Dhritiman Bhattacharya, Advocate

ORDER

It is an inbound merger of Transferor Company No.1, which is a non-applicant company based in the United Arab Emirates, Dubai. Ld. counsel for the petitioner has stated, upon inquiry that no proceedings for the merger of applicant No.1 Company in Dubai has been initiated because there is no such legal requirement. Moreover, the merger can be effective only when the order of merger will be passed by this Court. He is directed to file a note on the maintainability of this petition without the initiation of the merger proceedings in Dubai with respect to applicant company No.1. It is also stated by him that he wants to file some additional documents. Let the same be filed within one week. List on 22.01.2025.

Sd/-
(UMESH KUMAR SHUKLA)
MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
MEMBER (J)

PBS